

be heard in opposition thereto. ...” (*Id.* at 273.)

The California Supreme Court in *Howard*, quoted by *Pulte Homes*, includes an even more in-depth explanation of this legal tenet:

The setting aside and vacating the judgment alone, which was all the relief sought in said motion, would have been an idle act, because the default . . . would have stood undisturbed. The default cut off defendants from making any further opposition or objection to the relief which plaintiff's complaint shows he is entitled to demand. A defendant against whom a default has been entered is out of court and is not entitled to take any further steps in the cause affecting plaintiff's right of action; he cannot thereafter, until such default is set aside in a proper proceeding, file pleadings or move for a new trial, or demand notice of subsequent proceedings. . . . [citing cases] . . . If the judgment were vacated it would be the duty of the court immediately to render another judgment of like effect, and the defendants, still being in default, could not be heard in opposition thereto. ...” (*Howard*, supra, 35 Cal.2d at 888-89 citations omitted.)

Defendant has not sought to have her default set aside. While the current request to set aside the Amended Judgment may be timely, the Court is without power to set it aside as doing so would be an ‘idle act.’ (*Pulte Homes Corp.*, supra, 2 Cal.App.5th at 273.) Even if the Court set aside the Amended Judgment, it would be required to thereafter enter a new final judgment – without input from Defendant as she is and would remain in default.

Accordingly, Defendant’s Motion is **DENIED**.

3. 9:00 AM CASE NUMBER: C24-03337
CASE NAME: MARICRUZ DIMAS-MARTINEZ VS. HELIO DIMAS
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JOSEPH A. LEPERA**
FILED BY: DIMAS, HELIO
TENTATIVE RULING:

Joseph A. Lepera and the other named attorneys of Lepera + Associates, PC (“Counsel”) filed two separate motions to be relieved as counsel on December 5, 2025 (the “Motions to be Relieved as Counsel”). The matters were both set for hearing on April 20, 2026.

Background

Counsel seeks to be relieved as attorneys for defendants Helio Dimas and Susana Dimas (“Defendant”). The supporting declarations filed by Counsel indicates that there has been a breakdown in the attorney-client relationship due to a breach of the Attorney-Client Agreement and by conduct which has “rendered it unreasonably difficult to carry out their representation effectively.” See Declarations filed December 5, 2025, ¶2. Defendants have been given notice of the Motions to be Relieved as Counsel. *Id.* at ¶3.

Thereafter, Substitutions of Attorney were filed as to both defendants on January 5, 2026 (the

“Substitutions”). Both Helio Dimas and Susana Dimas are now representing themselves in pro per.

Analysis

The Motions to be Relieved as Counsel are unopposed.

Disposition

The Court finds and rules as follows:

1. The Motions to be Relieved as Counsel are DROPPED from calendar as moot in light of the Substitutions.
2. The Court shall issue the order after hearing.

4. 9:00 AM CASE NUMBER: C24-03337
CASE NAME: MARICRUZ DIMAS-MARTINEZ VS. HELIO DIMAS
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JOSEPH A. LEPERA**
FILED BY: DIMAS, SUSANA
TENTATIVE RULING:

See LINE 3 above.

5. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
***HEARING ON MOTION IN RE: STRIKE THE WHOLE OF SIMONA YANA S. ZAKHEIM AND HYDEN ZAKHEIM, LLP'S DEFECTIVE DEMURRER TO FIRST AMENDED COMPLAINT**
FILED BY: RODRIGUEZ, ROBERT D.
TENTATIVE RULING:

Withdrawn by the moving party's Notice of Withdrawal filed April 13, 2026. Accordingly, the motion is DROPPED from calendar.

6. 9:00 AM CASE NUMBER: C25-01728
CASE NAME: JOHN DOE VS. JOSEPH MARTIN
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: MOUNT DIABLO UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Defendant Mount Diablo Unified School District (“Defendant”) brings this demurrer to the complaint (“Complaint”) of plaintiff John JB Doe (“Plaintiff”). Defendant challenges Plaintiff’s second cause of action for sexual harassment pursuant to Civil Code sections 51.9 and 52, and third cause of action for negligent failure to warn, train, or educate students.

For the reasons discussed below, Defendant’s demurrer is **SUSTAINED** as to the second cause of action for sexual harassment pursuant to Civil Code sections 51.9 and 52, and third cause of action for